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Order QR

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 23-10-2026

CORAM

THE HON'BLE MR.JUSTICE N.RAMESH

CRL OP No. 30802 of 2026

CNR: {HCMA012561912026}

Case QR

Nandakumar
S/o Rajendran,
No.135, Perumal Koil Street,
Sathampakkam,
Walaja Taluk,
Ranipet District.

..Petitioner(s)

Vs

The State rep by the Inspector of Police
Walajapet Police Station,
Ranipet District.
Crime No.387 of 2026.

..Respondent(s)

Prayer: This petition is filed under section 483 of BNSS to enlarge the petitioner on bail investigation /Trial in connection with Crime no.387 of 2026 on the file of the Respondent Police on such terms and conditions as this Honourable Court.

For Petitioner(s): Mr. R.Sasikumar

For Respondent(s): Mr.M.M.I.Khaleel,
Govt.Advocate (Crl.Side)

ORDER

The petitioner, who was arrested and remanded to judicial custody on 19.09.2026 for the alleged offences under Section 296(b), 351(2) & U/s 3 of the Tamil Nadu Property (Prevention of Damage and Loss) Act in Crime No.387 of 2026 on the file of the respondent police, seeks bail.

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2.The case of the prosecution is that the petitioner under the influence of alcohol, abused the defacto complainant's husband in filthy language and damaged the CCTV camera installed at the defacto complainant's house. Hence, the case was registered.

3. The learned counsel appearing for the petitioner submitted that the petitioner is innocent and has been falsely implicated in this case without any basis. It is submitted that the petitioner has been in judicial custody since 19.09.2026 and that the petitioner is ready to cooperate with the investigation. The learned counsel would further contend that the petitioner is ready to abide by any condition imposed by this Court. Hence, he prayed for grant of bail to the petitioner.

4. Per contra, the learned Government Advocate (Criminal Side) appearing for the Respondent Police reiterated the prosecution case and submitted that there are four previous cases pending against the petitioner. Hence, he opposed the grant of bail to the petitioner.

5. I have given my anxious consideration to either side submissions and perused the materials available on record.

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6. Considering the submissions made by either side and nature of allegations and the period of incarceration undergone by the petitioner, this Court is inclined to grant bail to the petitioner, subject to certain conditions.

7. Accordingly, the petitioner is ordered to be released on bail on his executing a bond for a sum of **Rs.25,000/- (Rupees Twenty-Five Thousand only)**, with two sureties for a like sum each to the satisfaction of the **learned Judicial Magistrate No.II, Walajapet** subject to the following conditions:

[a] the sureties shall affix their photographs and Left Thumb Impression in the Application for Surety ship [Judicial Form No.46 annexed to 'The Criminal Rules of Practice, 2019']. The learned Magistrate shall obtain a copy of any one of the identity proofs to ensure their identity;

[b] the petitioner shall report before the respondent police daily at 10.30 a.m. until further orders;

[c] the petitioner shall not abscond either during investigation or trial;

[d] the petitioner shall not tamper with the evidence or witness either during investigation or trial;

[e] on breach of any of the aforementioned conditions, the learned Magistrate/Trial Court is entitled to take appropriate action against the petitioners in accordance with law as if the conditions had been imposed and the petitioners released on bail by the learned Magistrate/Trial Court itself, as laid down by the Hon'ble Supreme Court in ***P.K.Shaji vs. State of Kerala [(2005)13 SCC 283];***

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[f] if the petitioner thereafter abscond, a fresh FIR may be registered under Section 269 of the Bharatiya Nyaya Sanhita, 2023.

23-10-2026

SMN

Note:

1. Registry is directed to forthwith upload this order in the Official Website of this Court.

2. All concerned to act on this order being uploaded in Official Website of this Court without insisting on certified hard copies. To be noted, this order when uploaded in the official website of this Court will be watermarked and will also have a QR code.

To.

1. The **Judicial Magistrate No.II, Walajapet**

2.The Inspector of Police

Walajapet Police Station,

Ranipet District.

3. The Sub Jail, Walajapet

4. The public Prosecutor, High Court, Madras

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N.RAMESH, J.

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